

1. S-PR-0009459 Wise, Brenda Kay - In Re Estate of

Appearance is required for order to show cause hearing as to status of administration and final distribution.

2. S-PR-0012162 In Re the Estate of Castro, Crisanto Roque IV

Petition for final distribution is recommended for approval as prayed.

3. S-PR-0012446 In Re the Estate of Foster, Michael Allen

Petition for final distribution is recommended for approval as prayed.

4. S-PR-0012481 In Re the Estate of Stefanski, Michael Anthony

Petition for final distribution

Missing notice of hearing for petition for final distribution. Missing service of notice of hearing.

Estate administration is not in a position to be closed: at least 5 creditor claims remain unresolved, having been neither approved nor rejected by personal representative. If rejected in any amount, claimant(s) will be able to bring an action against the estate.

Missing report of notice to Department of Healthcare Services and / or to California Victim Compensation board.

Ordinary fees were miscalculated: fees are to be calculated based on the appraised value of the estate augmented by any receipts or gains on sale, then reduced by any losses on sale. The calculation in the petition does not utilize the I&A values, receipts or gains on sale, etc.

Missing final account or waivers of account by each of decedent's siblings.

Missing request for ordinary attorney fees to prior counsel for personal representative. Although counsel has since substituted out, he remains entitled to statutory fees, absent a waiver or other court action reducing or eliminating attorney fees. See, e.g., Prob.C. § 12205. No waiver of fees by Smith appears to have been filed.

Missing account waivers by heirs.

Motion to substitute attorney

The motion should be dropped as moot. Former counsel for administrator Robert Stevanski has substituted out of the matter.